

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.168265 /2018

JUDGMENT

Muhammad Nawazish Ali Pirzada

Vs.

Election Commission of Pakistan and 6 others

Date of Decision: 01.03.2018

Petitioner by: In person

Respondents by: Mr. Muhammad Shahzad Shaukat,
Mr. Taha Asif and Rana Imran
Advocates for the Respondent No.4.
Mr. Nasar Ahmed & Mr. M. Zikarya
Sheikh, DAG.
Mr. Ashfaq Ahmad Kharal, A.A.G.
Ch. Mohammad Arshad Virk, A.A.G.
Ch. Umar Hayat, Director (Legal)
E.C.P.

JAWAD HASSAN, J:- Through this petition,
filed under Article 199 of the Constitution of the Islamic
Republic of Pakistan, 1973 (the “**Constitution**”), the Petitioner
has challenged the order dated 17.02.2018 passed by the
Appellate Tribunal whereby the Election Appeal filed by the
Respondent No.4 was accepted and the order dated 12.02.2018
passed by the Returning Officer rejecting the nomination papers
of the Respondent No.4 was set aside.

2. The Petitioner *inter alia* submitted that the
impugned order is illegal and void *ab initio*; that the Appellate
Tribunal has not taken into consideration the fact that the
Respondent No.4 was disqualified under the law on being

deficient on the score of qualification of Technocrat; that the Respondent No.4 does not hold educational qualification requiring 16 years of education; that the Respondent No.4 did not annex his degree of Bachelors with his nomination papers rather only supplied a provisional certificate and that too without any equivalence certificate by the Higher Education Commission; that a candidate can either submit his nomination papers on the seat as 'Aalim' or 'Technocrat' and his nomination papers are liable to be rejected on the sole ground of false information; that the observation of the Respondent No.2 that the Petitioner was not an objector at the time of scrutiny is against the law as any person can bring the matter under the ambit of information to the Appellate Tribunal, as such the order of the Appellate Tribunal is liable to be set aside.

3. On the other hand learned Law Officers assisted by the learned counsel for the Respondent No.4 vehemently controverted the arguments advanced by the Petitioner and prayed for dismissal of the same on the ground that there is no irregularity or legal infirmity in the impugned order and the same is liable to be upheld. Learned counsel for the Respondent No.4 has relied upon the case titled **Election Commission of Pakistan through its Secretary v. Javaid Hashmi and others** (PLD 1989 Supreme Court 396), **Ghulam Mustafa Jatoi v. Additional District & Sessions Judge/Returning Officer, N.A. 158 Naushero Feroze and others** (1994 SCMR 1299) and

Muhammd Raza Hayat Hiraj and others v. The Election Commission of Pakistan and others (2015 SCMR 233).

4. We have heard the arguments of the learned counsel for the parties and have perused the record.

5. Before touching merits of the case, we would like to dilate upon the question of maintainability of this petition on the touchstone of locus-standi. At the outset when conformed with the fact that whether the Petitioner has filed any objection to the nomination papers of the Respondent No.4 before the Returning Officer, the Petitioner submitted that he did not file any objection but argued that the learned Appellate Tribunal was required under the law to consider Petitioner's point of view and therefore, this writ petition is also maintainable.

6. We have considered this argument in the context of applicable law. The bare reading of the Section 113 of the Election Act, 2017 (the "Act") reveals that only a candidate or an objector may file an Appeal against the decision of the Returning Officer in rejecting or accepting the nomination papers of a candidate. For the sake of brevity the said Section 113 is reproduced below and is as follows:

113. Appeal against scrutiny order.— (1) A candidate or an objector may, within the time specified by the Commission, file an appeal against the decision of the Returning Officer rejecting or, as the case may be, accepting a nomination paper to the Tribunal constituted for the purpose consisting of a person who is a Judge of a High Court, appointed by the Commission in

consultation with the Chief Justice of the High Court concerned.

(2) An appeal filed under sub-section (1) shall be summarily decided within such time as may be notified by the Commission and any order passed on the appeal shall be final.

(3) If, on the basis of information or material coming to its knowledge by any source, a Tribunal constituted under sub-section (1) is of the opinion that a candidate whose nomination paper has been accepted is a defaulter of loans, taxes, government dues and utility expenses or has had any loan written off or has willfully concealed such fact or suffers from any other disqualification from being elected as a Member of the Senate, it may, on its own motion, call upon such candidate to show cause why his nomination papers may not be rejected, and if the Tribunal is satisfied that the candidate is actually a defaulter or has had a loan written off or suffers from any disqualification, it may reject the nomination paper of the candidate.

(4) Announcement of the day and time appointed for the hearing of an appeal under this section over the radio or television or by publication in the newspaper shall be deemed to be sufficient notice of the day and time so appointed.”

(emphasis supplied)

7. A candidate is defined in Section 2-vii of the Act as under:

(vii) “candidate” means a person proposed and seconded as a candidate for, or seeking, election as a Member.”

8. Plain and holistic reading of Section 113 of the Act shows that candidate can file Appeal before Appellate

Tribunal if nomination papers are rejected. Whereas an objector can file Appeal before the Appellate Tribunal if nomination papers are accepted. The candidate cannot file Appeal against rejection of nomination paper of another candidate unless he was objector to those nomination papers. Although the objector is not defined under the Act but as and when any objection is filed by an objector the same is dealt with under Section 112 of the Act.

9. This interpretation is also inconsonance with the scheme of the Act, where Section 112 of the Act clearly depicts that the Returning Officer shall examine the nomination papers of the candidates and decide any objection raised by any such person to any nomination. Chapter VII of the Act deals with the conduct of Election to the Senate in which under Section 105 the Returning Officer and Dealing Officers have been appointed with the functions under Section 106. Section 110 deals with the nomination of the Election and the entire scrutiny of the candidates is stated in Section 112 (1) of the Act in which the Returning Officer shall give the candidates, their proposers and seconders, and an agent authorized in writing in this behalf, reasonable opportunity for examining all the nomination papers including any nomination by the objector. Only the candidates or the objectors were permitted to file an Appeal before the Appellate Tribunal under Section 113 of the Act in case of rejection or acceptance of nomination papers as the case may be, therefore, the *locus standi* to file an Appeal against rejection of nomination papers only lies with the objector. Subsection 3

of Section 113 of the Act further clarifies that the Tribunal can also deal with the matters of the candidates.

10. In this case it is admitted and apparent from the record that the Petitioner had not filed any objection as provided under Section 112 of the Act against the nomination papers of Respondent No.4, therefore, he had no locus-standi to be heard before the Appellate Tribunal. It is further noted that the only remedy available to the Petitioner being a candidate and not objector under Section 156 of the Act in post-election proceedings where the Petitioner will have grounds for seeking declaration of any election of returned candidate void if the nomination of the returned candidate is invalid or he is not qualified.

11. In view of above, we fully agree with the findings of the learned Appellate Tribunal who in paragraph 3 of the impugned order observed that *on the other hand, Mr. Nawazish Ali Pirzada tried to defend the Appeal on the ground that he is a contesting candidate for the seat of Technocrat. When confronted that whether he has filed objections on the nomination papers of the Appellant before the Returning Officer; the answer is in the negative. In these circumstances, I am of the view that the candidate who has not filed the objections cannot contest the Appeal, if he has any material with him, he can inform the Tribunal through the representative of Provincial Election Commission who is being representing by the Director (Legal).*

12. As the Petitioner had no locus-standi to be heard by the Appellate Tribunal being not an objector, therefore he has no locus-standi to file even this petition after the impugned order of the Appellate Tribunal. Indeed, the situation would have been different if Petitioner was an objector to the nomination papers of Respondent No.4 in scrutiny process.

13. In view of what has been discussed above, we see no illegality or legal perversity in the impugned order to the locus standi of the Petitioner, which has been passed strictly in consonance with the spirit of law and does not call for any interference.

14. As a sequel, the instant petition, being not maintainable, is hereby dismissed.

(ABID AZIZ SHEIKH)
JUDGE

(JAWAD HASSAN)
JUDGE